FULL TEXT OF MEASURE R

Exhibit A

Note: Proposed additions to the Charter are underlined text. Deletions are in strikethrough text. Unchanged text is neither underlined or in strikethrough. Asterisks (* * * *) indicate the omission of unchanged sections.

Section 301. - Public Works Contracts.

The City is exempt from the provisions of all California statutes regulating public contracting and purchasing except as provided by ordinance, ~~or~~ by agreement approved by the City Council, or this Charter. Eligibility for state and federal grant funding and financial assistance in support of public works projects is essential for sound fiscal management of the City's capital infrastructure programs. The City shall establish standards, procedures, rules or regulations to regulate all aspects of public contracting consistent with the legal requirements for securing state and federal grants and financial assistance as appropriate.

Section 302. – Prevailing Wage

~~No City contract shall require payment of the prevailing wage schedule unless: the prevailing wage is legally required, and constitutionally permitted to be imposed, by federal or state grants pursuant to federal or state law; or the project is considered by the City Council not to be a municipal affair of the City; or payment of the prevailing wage schedule is authorized by resolution of the City Council. Payment of the prevailing wage schedule, if authorized hereunder, shall use the pertinent rates published by the State of California.~~ Notwithstanding any other provision of this Charter or local law, to ensure the City's eligibility for state funding and financial assistance, all public works contracts, as defined in paragraph (1) of subdivision (d) of Section 1782 of the California Labor Code, that are awarded by the City shall comply with state law prevailing wage requirements.

Section 303. – Fair and Open Competition

~~The City shall not, in any contract for the construction, maintenance, repair, or improvement of public works, require that a contractor, subcontractor, material supplier, or carrier engaged in the construction, maintenance, repair or improvement of public works, execute or otherwise become party to any project labor agreement, collective bargaining agreement, prehire agreement, or other agreement with employees, their representatives, or any labor organization as a condition of bidding, negotiating, being awarded, or performing work on a public works contract. Nothing in this section shall be construed as prohibiting private parties from entering into individual collective bargaining relationships, or otherwise as regulating or interfering with activity protected by applicable law, including but not limited to the National labor Relations Act.~~ Notwithstanding any other provision of this Charter or local law, to ensure the City's eligibility for state funding or financial assistance, consistent with Public Contract Code sections 2500 - 2503, the City Council may choose by majority vote whether to use, enter into, or require contractors to enter into a project labor agreement that includes all the taxpayer protection provisions of Public Contract Code section 2500 for a specific project or projects awarded by the City and whether to allocate funding to a specific project covered by such an agreement. Unless otherwise amended by state law, the minimum taxpayer protection provisions shall be included in any project labor agreement per Public Contract Code section 2500(a):

(1) The agreement prohibits discrimination based on race, national origin, religion, sex, sexual orientation, political affiliation, or membership in a labor organization in hiring and dispatching workers for the project.
(2) The agreement permits all qualified contractors and subcontractors to bid for and be awarded work on the project without regard to whether they are otherwise parties to collective bargaining agreements.
(3) The agreement contains an agreed-upon protocol concerning drug testing for workers who will be employed on the project.
(4) The agreement contains guarantees against work stoppages, strikes, lockouts, and similar disruptions of the project.
(5) The agreement provides that disputes arising from the agreement shall be resolved by a neutral arbitrator.